

or post-judgment proceedings are non-compensable; or (5) that attorney's fees somehow become unrecoverable whenever opposing counsel later - in hindsight - identifies an arguably less expensive procedural alternative. Had the parties intended to impose any of those limitations, they could have done so.

G. Costs

Rule 3. 1700 of the California Rules of Court establishes a procedure for contesting costs through a motion to tax costs. (*Kaufman v. Diskeeper Corp.* (2014) 229 Cal. App. 4th 1, 8.) Defendants filed their Memorandum of Costs on June 1, 2026, concurrent with this Motion. Any Motion to Tax/Strike Costs on or before June 18, 2026. (CRC 3. 1700(b)(I).) Plaintiff waived any objection to Defendants' costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 290.)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404359	OLW LAX INC. vs DENG	MOTION TO SET ASIDE ENTRY OF DEFAULT

Tentative Ruling: To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against Lion King Trucking Inc. on October 24, 2024, the Court **DENIES** the motion as procedurally defective because a corporation must be represented by counsel. To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against him on November 1, 2024, the Court **DENIES** that motion. Although Defendant asserts that he had no actual knowledge of the entry of default, he provides no evidence of that; i.e., no travel records, no passport stamps, and no other competent evidence to support this assertion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506582	MOORE-THILL vs SPICER	DEMURRER ON COMPLAINT

Tentative Ruling: The Court SUSTAINS the demurrer without leave to amend because Plaintiff has not articulated a basis to amend.

Statute of Limitations

A demurrer can be used only to challenge defects appearing on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), and it is error for a court to consider facts asserted in a supporting memorandum. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, *disapproved on other grounds* in *Moradi-Shalal v. Fireman's Fund Ins. Co.* (1988) 46 Cal.3d 287.) Thus, a demurrer based upon a statute of limitations only lies where the

running of the statute “clearly and affirmatively” appears on the face of the complaint. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

CCP § 340.5 provides in relevant part:

In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person.

The limitations period under CCP § 340.5 begins to run when a plaintiff suspects or should suspect that her injury was caused by wrongdoing. (*Kitzig v. Nordquist* (2000) 81 Cal.App.4th 1384, 1391, quoting *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) The rule sets forth two alternate tests for triggering the limitations period: (1) a subjective test requiring actual suspicion by the plaintiff that the injury was caused by wrongdoing; and (2) an objective test requiring a showing that a reasonable person would have suspected the injury was caused by wrongdoing. (*Kitzig*, supra, 81 Cal.App.4th at 1391.) The earliest to occur triggers the limitations period. (*Ibid.*) Importantly, a demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 342.) That is, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. (*Ibid.*)

Defendant, MGMC, argues that the FAC alleges injury arising from events occurring in February of 2021 so, the three-year limitation period expired no later than February of 2024, but this action was not filed until December of 2025. MGMC asserts that while Plaintiff had imaging done in 2025 that confirmed mal-positioning of instrumentation, that fact did not restart or extend the applicable statute of limitations period. MGMC argues that once appreciable injury exists, later confirmation does not delay accrual. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110-1111.) Defendant adds that no allegations indicate any tolling of the limitations’ deadline.

In the Opposition, Plaintiff states: “Discovery occurred upon later imaging confirming spinal canal intrusion. This is a factual issue not resolvable on demurrer.” (Oppo. p. 1: 14-15.) Plaintiff’s argument indicates that she knew an injury had occurred as the later imaging confirmed her injury. The FAC alleges only one negligent event that occurred on 2/16/21 during lumbar spine surgery performed by Dr. Spicer. (FAC ¶¶ 1-2.) The FAC alleges that when she woke from the anesthesia, she experienced pain and neurological symptoms that were different from what was expected. (FAC ¶¶ 7-8.)

“In 2025 diagnostic imaging confirmed the mal-positioned spinal instrumentation placed during the February 2021 surgery.” (FAC ¶ 10.) Plaintiff does not allege that she had any other injuring event occur between her February of 2021 spinal surgery, and the December of 2025 confirmation of her prior injury. Instead, she clearly connects her injuries to the February of 2021 surgery. Based on the allegations on the face of the FAC, Plaintiff’s lawsuit was untimely filed after the three-year statute of limitations period had already expired, and she has not alleged any exception based on fraud, intentional concealment, or the presence of a non-therapeutic foreign body, or any other basis for tolling. The Court sustains the demurrer without leave to amend, because Plaintiff has not articulated a basis to amend.

1st Cause of Action for Medical Negligence and 2nd Cause of Action for Negligent Credentialing and Supervision

The elements of a negligence cause of action are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.)

Defendant, MGMC, argues that there are no factual allegations attributed to it to establish liability. The FAC is alleged as to “Defendants” collectively, which includes parties with differing roles in the alleged events. MGMC argues that the FAC’s focus is on the surgical procedure and decisions made during treatment, but does not separately assert facts as to MGMC, its nursing staff, administrative personnel, nor does it assert a specific duty owed by MGMC to Plaintiff.

In the Opposition, Plaintiff only argues that the “[h]ospital failed to monitor and respond to neurological symptoms.” (Oppo. p. 1:17-18.) This is not only a vague allegation, but also, it is not alleged in the FAC.

As to the 2nd cause of action, there are no ultimate facts as to MGMC’s supervision of or credentialing of the physicians who treated Plaintiff including Dr. Spicer. “[T]he hospital is in the best position to evaluate the competence of physicians it, in its discretion, allows to perform surgery and to practice within its premises.” (*Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332, 345.) Yet, no legal duty is specifically attributed to MGMC.

In the Opposition, Plaintiff merely states that duty and breach were adequately alleged. (Oppo. p. 1:22-23.) She also states the doctor was on probation requiring a proctor, but no proctor was present, making the Hospital liable. (Oppo. p. 1:24-26.) This second assertion is similarly not alleged in the FAC.

Based on the foregoing, the FAC fails to allege facts sufficient to constitute a cause of action and is uncertain. Thus, Court sustains the demurrer without leave to amend because Plaintiff has not articulated a basis to amend.